

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

COMMITTEE SUBSTITUTE
FOR

HOUSE BILL NO. 2959

By: Bashore and Manger

COMMITTEE SUBSTITUTE

An Act relating to schools; amending 70 O.S. 2021, Section 1210.163, as last amended by Section 3, Chapter 260, O.S.L. 2025 (70 O.S. Supp. 2025, Section 1210.163), which relates to student abuse or neglect reporting; requiring superintendents and school administrators to report suspected abuse by school employees to law enforcement within twenty-four hours; requiring reporting before formal school investigation; prohibiting formal interviews of suspected involved parties until notification of and interviews by law enforcement; establishing duty to report regardless of employment status of accused; updating references; requiring employees to sign an attestation of duties to report abuse or neglect; defining term; requiring a written report from school resource officers under certain circumstances; amending Section 1, Chapter 297, O.S.L. 2024 (70 O.S. Supp. 2025, Section 6-401), which relates to school personnel electronic communication with students; requiring immediate notification to law enforcement for certain violations; providing an effective date; and declaring an emergency.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 70 O.S. 2021, Section 1210.163, as last amended by Section 3, Chapter 260, O.S.L. 2025 (70 O.S. Supp. 2025, Section 1210.163), is amended to read as follows:

Section 1210.163. A. Every school employee having reason to believe that a student under the age of eighteen (18) years is a victim of abuse or neglect shall report the matter immediately to the Department of Human Services and local law enforcement. Reports to the Department shall be made to the hotline provided for in Section 1-2-101 of Title 10A of the Oklahoma Statutes. Any allegation of abuse or neglect reported in any manner to a county office shall immediately be referred to the hotline by the Department.

B. Every school employee having reason to believe that a student age eighteen (18) years or older is a victim of abuse or neglect shall report the matter immediately to local law enforcement.

C. 1. In addition to the reporting requirements of this section, any superintendent or school administrator of a private school or public school district who has reason to believe, or receives an allegation or disclosure, that a school employee is involved in the abuse or neglect of a student shall report the matter within twenty-four (24) hours to local law enforcement.

2. All disclosures or allegations made under this subsection shall be reported to law enforcement prior to any formal

1 investigation by the school or school board, or questioning of the
2 subject of the accusation.

3 3. No school investigator, administrator, or official shall
4 conduct formal interviews of the subject of the accusation or engage
5 in disciplinary proceedings until law enforcement has been notified
6 and has had the opportunity to interview the involved parties,
7 unless law enforcement determines that an immediate school response
8 is necessary to protect student safety.

9 4. The resignation, termination, transfer, or other separation
10 from employment of the subject of an allegation or disclosure shall
11 not relieve any person of the duty to report to law enforcement as
12 required by this subsection.

13 D. In reports required by subsection A ~~or~~, B, or C of this
14 section, local law enforcement shall keep confidential and redact
15 any information identifying the reporting school employee unless
16 otherwise ordered by the court. A school employee with knowledge of
17 a report required by subsection A ~~or~~, B, or C of this section shall
18 not disclose information identifying the reporting school employee
19 unless otherwise ordered by the court or as part of an investigation
20 by local law enforcement or the Department.

21 ~~D.~~ E. Any superintendent or school administrator of a private
22 school or public school district who knowingly and willfully fails
23 to promptly report or interferes with the prompt reporting of abuse
24 or neglect shall be subject to the penalties provided for in Section

1 ~~2 of this act~~ 593 of Title 21 or Section 1-2-101 of Title 10A of the
2 Oklahoma Statutes. As used in this ~~subsection~~ section, "school
3 administrator" means a principal, assistant principal, or any other
4 person who serves in a supervisory or administrative capacity in a
5 private school or public school district.

6 ~~E.~~ F. Every school employee shall annually sign an attestation
7 acknowledging his or her responsibility to report suspected child
8 abuse or neglect pursuant to this section. Failure to sign an
9 attestation does not relieve school personnel from the obligations
10 created in this section, nor shall such failure constitute a defense
11 to criminal liability arising under Sections 593 of Title 21 or 1-2-
12 101 of Title 10A of the Oklahoma Statutes.

13 G. For the purposes of this section, "child abuse and neglect"
14 shall include, but not be limited to:

15 1. Child abuse as defined in Section 843.5 of Title 21 of the
16 Oklahoma Statutes;

17 2. Sexual abuse or sexual exploitation as defined in Section 1-
18 1-105 of Title 10A of the Oklahoma Statutes;

19 3. Contributing to the delinquency of a minor as defined in
20 Section 856 of Title 21 of the Oklahoma Statutes;

21 4. Trafficking in children, as defined in Section 866 of Title
22 21 of the Oklahoma Statutes;

23 5. Incest as described in Section 885 of Title 21 of the
24 Oklahoma Statutes;

1 6. Forcible sodomy, as described in Section 888 of Title 21 of
2 the Oklahoma Statutes;

3 7. Maliciously, forcibly or fraudulently taking or enticing a
4 child away, as described in Section 891 of Title 21 of the Oklahoma
5 Statutes;

6 8. Soliciting or aiding a minor child to perform or showing,
7 exhibiting, loaning or distributing obscene material or child sexual
8 abuse material, as described in Section 1021 of Title 21 of the
9 Oklahoma Statutes;

10 9. Procuring or causing the participation of any minor child in
11 any child sexual abuse material or knowingly possessing, procuring
12 or manufacturing child sexual abuse material, as described in
13 Section 1021.2 of Title 21 of the Oklahoma Statutes;

14 10. Permitting or consenting to the participation of a minor
15 child in any child sexual abuse material, as described in Section
16 1021.3 of Title 21 of the Oklahoma Statutes;

17 11. Facilitating, encouraging, offering or soliciting sexual
18 conduct with a minor, as described in Section 1040.13a of Title 21
19 of the Oklahoma Statutes;

20 12. Offering or offering to secure a minor child for the
21 purposes of prostitution or any other lewd or indecent act, as
22 described in Section 1087 of Title 21 of the Oklahoma Statutes;

1 13. Causing, inducing, persuading or encouraging a minor child
2 to engage or continue to engage in prostitution, as described in
3 Section 1088 of Title 21 of the Oklahoma Statutes;

4 14. Rape or rape by instrumentation, as described in Sections
5 1111.1 and 1114 of Title 21 of the Oklahoma Statutes;

6 15. Making any oral, written or electronically or computer-
7 generated lewd or indecent proposals to a minor child under the age
8 of sixteen (16) as described in Section 1123 of Title 21 of the
9 Oklahoma Statutes; and

10 16. Sexual battery, when committed upon a person who is at
11 least sixteen (16) years of age and is less than twenty (20) years
12 of age and is a student, or in the legal custody or supervision of
13 any public or private elementary or secondary school, or technology
14 center school, by a person who is eighteen (18) years of age or
15 older and is an employee of a private school or public school
16 system.

17 H. 1. For the purposes of this section, "local law
18 enforcement" means a law enforcement agency independent of the
19 school district or a full-time school district police department
20 fully commissioned by the State of Oklahoma. Local law enforcement
21 shall not include a school resource officer employed by the district
22 unless directed by the independent law enforcement agency.

23 2. When a school resource officer is utilized pursuant to this
24 subsection, the officer shall submit a written report to the

1 independent law enforcement agency describing the circumstances and
2 any actions taken.

3 SECTION 2. AMENDATORY Section 1, Chapter 297, O.S.L.
4 2024 (70 O.S. Supp. 2025, Section 6-401), is amended to read as
5 follows:

6 Section 6-401. A. As used in this section:

7 1. "Electronic or digital communication" includes, but is not
8 limited to, emails, text messages, instant messages, direct
9 messages, social media messages, messages sent through software
10 applications, and any other electronic digital means of
11 communication; and

12 2. "School personnel" means teachers, coaches, administrators,
13 school bus drivers, or any other persons employed full-time or part-
14 time by a public school or charter school.

15 B. School personnel engaging in electronic or digital
16 communication with an individual student shall include the student's
17 parent or guardian in any electronic or digital communication,
18 unless such communication is on a school-approved platform and
19 related to school and academic communications.

20 C. Exceptions to the requirement in subsection B of this
21 section may be made in case of an emergency, subject to subsequent
22 notification to the parent or guardian. School personnel shall make
23 reasonable efforts to use school-approved platforms, systems, or
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1 applications that allow automatic inclusion of parents or guardians
2 in communications with students.

3 D. Schools shall provide training, developed by the State
4 Department of Education, for school personnel on the student
5 communication requirements of this section.

6 E. Any school personnel who is reported to be in violation of
7 subsection B of this section shall be put on administrative leave
8 while the school district investigates the incident and notifies the
9 board of education. If the investigation finds that no misconduct
10 occurred, the school personnel shall be reinstated and the incident
11 shall be noted in the school personnel's employee file. If the
12 investigation finds misconduct occurred, the school personnel shall
13 be disciplined according to the school district board of education's
14 policy, up to and including termination of employment, and the
15 incident shall be reported to law enforcement pursuant to Section
16 1210.163 of Title 70 of the Oklahoma Statutes.

17 F. Law enforcement shall be immediately notified of any
18 violation of subsection B of this section involving sexual activity,
19 sexual contact, or any other inappropriate or unlawful behavior
20 pursuant to Section 1210.163 of this title.

21 SECTION 3. This act shall become effective July 1, 2026.

22 SECTION 4. It being immediately necessary for the preservation
23 of the public peace, health or safety, an emergency is hereby
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1 declared to exist, by reason whereof this act shall take effect and
2 be in full force from and after its passage and approval.

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